

Line 1

Case Name: *Abel Gonzalez v. Toby Tilford, et al.*

Case No.: 26CV493354

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants Better Care, Inc. and Better Care, Inc. dba The Redwoods Post Acute (sued as Redwood Post Acute) (“Defendants”) demur under Code of Civil Procedure Section 430.10 to the Complaint of Plaintiff Abel Gonzalez (“Plaintiff”) on the grounds that the Complaint is fatally uncertain and fails to allege facts sufficient to constitute a cause of action against Defendants. Notice of Demurrer (the “Demurrer”) at 1:27-2:5 (filed: July 6, 2026).

The Demurrer came on for hearing on September 9, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Fact Allegations

According to the Plaintiff’s Declaration attached to the Complaint:

- “Defendants failed to maintain the non-delegable duty of care mandated by California Title 22, section 72501. This failure constitutes a material breach of established safety standards, resulting in the deprivation of essential care protocols”.
- “The Defendants engaged in willful misconduct by intentionally rationing clinical resources to bolster corporate expansion. This economic prioritization over the mandatory standard of care satisfies the criteria for punitive damages under California law.”
- “The facility’s operational failures were not isolated lapses, but a systemic departure from the standard of care, demonstrating a reckless disregard for the safety and physical integrity of the residents.”

(Gonzales Declaration ¶¶ 1-3)

According to the Plaintiff’s “Statement of Undisputed Facts” attached to the Complaint:

- “The ‘Never Event’: On [Date], the facility failed to provide standard IV care, resulting in a critical incident. This failure occurred during a period of

documented understaffing.

- “Statutory Discharge Violation (SB 1152): The facility failed to execute the mandated discharge checklist required by SB 1152, constituting a per-se violation of California law.”
- “Notice of Breach: Defendant was served with a formal “Accelerator Protocol” demand on [Date]. Defendant failed to provide a timely or substantive response, establishing willful indifference to the regulatory breaches.”
- “False Claims Act (FCA) Nexus: Despite knowing of the operational non-compliance (via notice and internal review), the Defendant knowingly submitted claims for government payment (Medi-Cal/Medicare) while the facility operated in violation of safety standards.”

(Statement of Undisputed Facts ¶¶ 3-6)

Plaintiff filed this Complaint on May 11, 2026, seemingly alleging causes of action for general negligence, intentional tort, Title 22, SB 1152, breach of mandated treatment, and elder abuse.

II. Legal Standards

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (*Redfearn v. Trader Joe’s Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine “whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (*Ibid.*) The court assumes “the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (*Ibid.*) Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer. (*Erlach v. Sierra Asset Servicing, LLC*, (2014) 226 Cal. App. 4th 1281, 1291.)

Courts “give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts “construe the complaint ‘liberally ... with a view to substantial justice between the parties[.]’” (*Ibid.*) “A demurrer must dispose of an entire cause of action to be

sustained.” (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.)

Under Code Civ. Proc. § 430.10(f), a demurrer may also be sustained if a complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

Even if a demurrer is sustained, leave to amend the complaint is routinely granted under California law. “Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) “Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

A court may, upon motion, or at any time in its discretion, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc, § 436, subd. (a).) Furthermore, a court may also strike all, or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc, § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc, § 437.)

III. Analysis of the Demurrer

Defendants contend the complaint is not viable because: (1) it is uncertain and unintelligible as to what causes of action are being asserted against what defendants, and (2) it fails to allege sufficient facts constituting the required element for each cause of action. The Court agrees that that it is so uncertain and unintelligible that Defendants have no fair notice of what claims Plaintiff is making against them.

California Rules of Court, rule 2.112, requires that each separately stated cause of action or count specifically state its number (e.g., first cause of action), its nature, the party asserting it, and the party/parties to who it is directed at. .” (Rules of Court, rule 2.112.)

Code of Civil Procedure section 425.10 requires a complaint to contain “[a] statement of the facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc. § 425.10(a).)

Plaintiffs’ Complaint violates both Code of Civil Procedure section 425.10 and California Rules of Court, rule 2.112, by failing to delineate separate causes of action, to identify which cause of action is directed against which defendant, or coherently reference any provision or principle of law that was allegedly violated.

Furthermore, despite the Complaint's verbose presentation and inclusion of extraneous materials, it is uncertain, unintelligible, and severely disorganized. Using the Judicial Council Form, Plaintiff lists general negligence, intentional tort, Title 22, SB1152, breach of mandated treatment, and elder abuse. But the form complaint contains only one form attachment identifying the first cause of action as "Intentional Tort." (Complaint PLD-PI-001, ¶ 10) The Form Complaint seemingly is supplemented by other documents titled: "Document Title (e.g., complaint for damages)", "Statement of Justification for Exemplary Damages", "Action of Cause", "Exemplary Damages Attachment", "Statement of Undisputed Facts", "Notice of Related Case Supplemental Statement", "Notice of Related Case", "Declaration of Abel Gonzales", and "Complaint for Damages". Plaintiff's supplemented one page "Complaint for Damages" lists fraudulent inducement, false claims act (Gov. Code § 12651), SB 1152, Title 22, and spoilation as causes of action.

On its face as presented, the Complaint contains conflicting lists of causes of action. Thus, the Court cannot determine whether there are five, seven, or eight causes of action or whether the fraudulent inducement and intentional tort are the same claims.

While demurrers for uncertainty are strictly construed and generally disfavored because most ambiguities can be clarified through discovery, the uncertainty here goes far beyond mere ambiguity. (See, *Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.) The Complaint is so inadequately organized and fundamentally unintelligible that Defendants cannot reasonably determine what legal claims they must defend against or which factual allegations apply to them as opposed to the Link Healthcare Group, Toby Tilford, or Curtis Rodriguez. The Complaint contains no differentiation between claims against the entity defendants and each individual defendant. Although a Complaint can withstand a demurrer for uncertainty if it clearly sets forth the facts relied upon, Plaintiff's Complaint fails even this lenient standard.

Moreover, Plaintiff has not filed a formal Opposition contesting the merits of Defendants' Demurrer. Instead, on August 11, 2026, Plaintiff filed his declaration requesting the Court to strike Defendants' demurrer and motion to strike on the grounds that Judge Zayner's June 29, 2026, Order stayed all responsive pleadings until after the initial case management conference.

The Court has the discretionary power to construe Plaintiff's August 11, 2026, declaration as his opposition to Defendants' motion. (See *Lewis v. Superior Court* (2008) 169 Cal.App.4th 70, 77 ["[t]he label given a petition, action or other pleading is not determinative; rather, the true nature of a petition or cause of action is based on the facts alleged and remedy sought in that pleading."]; *Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 187, 193 [a trial court is free to consider a motion regardless of its label and "[t]he proposition that a trial court may construe a motion bearing one label as a different type of motion is one that has existed for many decades."]; *CPF Agency Corp. v. R&S Towing* (2005) 132 Cal.App.4th 1014, 1021 [trial court had inherent authority to treat motion to dismiss as a motion to strike]; *Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1384 [court can treat summary judgment motion as motion for judgment on the pleadings].)

Nevertheless, Plaintiff's Opposition fails badly since he misrepresents Judge Zayner's Order. On June 29, 2026, Judge Zayner ruled that this case does not qualify as complex under California Rules of Court 3.400, as stated on the first page of the Order. Furthermore, the Order expressly *eliminated* any stay on responsive pleadings by *striking out* that language on page two of the Order. Hence, Plaintiff's Opposition is as false as it is wrong.

For all these reasons, the Court **SUSTAINS** the Demurrer on the ground of uncertainty.¹

That said, in light of the famous liberality of California law permitting amendments to initial complaints when a demurrer has been sustained (*Angie M.*, 37 Cal. App. 4th at 1227), the Court will give Plaintiff this one fair opportunity to amend the Complaint to try to remedy the serious pleading deficiencies identified in this Order. Accordingly, the Court gives Plaintiff **LEAVE TO AMEND** the Complaint **within 10 days of today**.

IV. Analysis of the Motion to Strike

Given the Court's ruling **SUSTAINING** the Demurrer to *all of the Complaint*, the Court need not and does not resolve the Motion to Strike *portions of the Complaint* as it is now moot.

V. Conclusion & Order

For the reasons explained above, Defendants' Demurrer to the entire Complaint is **SUSTAINED WITH LEAVE TO AMEND within 10 days of today**.

In light of that ruling, Defendants' Motion to Strike portions of the Complaint is **DENIED** as moot.

SO ORDERED.

Date: September 9, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

¹ As the Court **SUSTAINS** the Demurrer on the ground of uncertainty, the Court need not and does not reach or resolve Defendants' alternative ground for Demurrer that the Complaint fails to allege facts sufficient to constitute any cause of action.

Line 2

Case Name: *Theo Van Buren v. Bill Holdings Inc., et al.*

Case No.: 25CV480145

See ORDER above. (As this entire action has been dismissed at Plaintiff's request made on September 1, 2026, this Demurrer is **OFF CALENDER** as **MOOT**. And all future hearings in this dismissed action are **VACATED**.)